

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #:
Date Purchased:

-----x
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

Plaintiff designates
NEW YORK County as
Place of Trial
Basis of venue is:
Place of Occurrence

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
MIHAI TUDOR, SHIELD #: 4250, POLICE
OFFICER BRYAN BLACHUCIAK, SHIELD #:
973951, and POLICE OFFICER "JOHN DOE",

Plaintiff's Residence:
558 West 164th Street
New York, New York 10032

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 22, 2024

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska
171 Madison Avenue, 1300
New York, New York 10016
(212) 684-3630

Defendants' Addresses:

CITY: 100 Church Street, New York, New York 10007
P.O. MIHAI TUDOR: One Police Plaza, NY, NY and or 35th Precinct,
357 West 35th Street, New York, NY 10001
P.O. BRYAN BLACHUCIAK: One Police Plaza, NY, NY and or 35th
Precinct, 357 West 35th Street, New York, NY 10001
P.O. "JOHN DOE": Address Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
MIHAI TUDOR, SHIELD #: 4250, POLICE
OFFICER BRYAN BLACHUCIAK, SHIELD #:
973951, and POLICE OFFICER "JOHN DOE",

Defendants.

-----X

Plaintiff, JOSE ESCALONA-MARTINEZ, by his attorney,
DAVID HOROWITZ, P.C., complaining of the defendants, alleges upon
information and belief as follows:

1. That at all times hereinafter mentioned, the
defendant THE CITY OF NEW YORK was and still is a domestic
municipal corporation, duly organized and existing under and by
virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, Police
Officer Mihai Tudor, Shield #: 4250 was employed by the New York
City Police Department, a division of the defendant THE CITY OF
NEW YORK.

3. That at all times hereinafter mentioned, Police
Officer Mihai Tudor, Shield #: 4250 was employed by the defendant
the CITY OF NEW YORK.

4. That at all times hereinafter mentioned, Police

Officer Mihai Tudor, Shield #: 4250 was acting in the course of his employment and furtherance of the business of the New York City Police Department, a division of the City of New York.

5. That at all times hereinafter mentioned, Police Officer Mihai Tudor, Shield #: 4250 was acting in the course of his employment and furtherance of the business of the defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Mihai Tudor, Shield #: 4250.

7. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Mihai Tudor, Shield #: 4250.

8. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Mihai Tudor, Shield #: 4250.

9. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Mihai Tudor, Shield #: 4250.

10. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Mihai Tudor, Shield #: 4250.

11. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Mihai Tudor, Shield

#: 4250.

12. That at all times hereinafter mentioned, Police Officer Bryan Blachuciak, Shield #: 973951 was acting in the course of his employment and furtherance of the business of the New York City Police Department, a division of the City of New York.

13. That at all times hereinafter mentioned, Police Officer Bryan Blachuciak, Shield #: 973951 was acting in the course of his employment and furtherance of the business of the defendant THE CITY OF NEW YORK.

14. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Bryan Blachuciak, Shield #: 973951.

15. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Bryan Blachuciak, Shield #: 973951.

16. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Bryan Blachuciak, Shield #: 973951.

17. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Bryan Blachuciak, Shield #: 973951.

18. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Bryan Blachuciak, Shield #: 973951.

19. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Bryan Blachuciak, Shield #: 973951.

20. That at all times hereinafter mentioned, Police Officer "John Doe" was acting in the course of her/his employment and furtherance of the business of the New York City Police Department, a division of the City of New York.

21. That at all times hereinafter mentioned, Police Officer "John Doe" was acting in the course of her/his employment and furtherance of the business of the defendant THE CITY OF NEW YORK.

22. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer "John Doe."

23. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer "John Doe."

24. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer "John Doe."

25. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer "John Doe."

26. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer "John Doe."

27. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer "John Doe."

28. That on the 27th day of June 2023, a notice of claim

was duly served upon the defendant THE CITY OF NEW YORK.

29. That said notice of claim was duly served upon the defendant THE CITY OF NEW YORK within 90 days after the said cause of action of the plaintiff accrued.

30. That more than thirty days have elapsed since the service of the said amended notice of claim upon the defendant THE CITY OF NEW YORK.

31. That the defendant THE CITY OF NEW YORK and its comptroller have failed, neglected, and refused to pay, settle, compromise, or adjust the claim of the plaintiff herein.

32. That a 50(h) hearing was held on September 27, 2023.

33. That this action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

34. That plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

35. That on April 24, 2023, at approximately 12:05P.M., as plaintiff was dressed in an Ironman costume, and was lawfully crossing West 44th Street and Broadway, New York, New York, walking together with another Times Square Performer - Elmo, and not conducting any business whatsoever, and not talking to anyone, and not asking for money, not receiving money, and not taking a picture, when he was approached by Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe", who told him that he

couldn't be in that the area without cause or reason, demanded his ID, and then the officers arrested him. Despite not committing any crime, nor violation, plaintiff was improperly and illegally stopped, frisked, falsely arrested, falsely imprisoned, and transported to the 35th Precinct where he was held for approximately 2 hours without probable cause or reasonable suspicion, or reason. There was no warrant for the plaintiff's arrest. The plaintiff was improperly issued a desk appearance ticket to appear in Midtown Community Court and improperly charged with violations of the law. He was then released. All tickets and or charges were dismissed.

36. Plaintiff was falsely detained, falsely arrested, falsely imprisoned, retaliated against, issued a DAT and maliciously prosecuted all due to the negligence and recklessness of the defendant THE CITY OF NEW YORK, Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe" and its agents, servants and/or employees, all to plaintiff's damage and deprivation of freedom and deprivation of his civil rights.

37. That upon information and belief, and more particularly on April 24, 2023, and continuing thereafter, defendant THE CITY OF NEW YORK by and its agents, servants, employees, and defendants Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe", acting in the scope of their employment

and in the furtherance of the business of the defendant THE CITY OF NEW YORK, without probable cause, without reason, without justification, provocation, and with malice, falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted and retaliated against plaintiff JOSE ESCALONA-MARTINEZ.

38. At the time of said false detainment and false arrest, plaintiff JOSE ESCALONA-MARTINEZ had committed no illegal act and the defendant and its agents, servants, employees, and police officers had no probable cause or reasonable belief that the plaintiff had committed an illegal act.

39. That the said Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe" falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted the plaintiff, while employed by the New York City Police Department and acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

40. That the said Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe", while acting in the course of their employment for the defendant THE CITY OF NEW YORK, and following the City of New York's improper training and custom and practice

that discriminates and targets Times Square street performers including plaintiff, the defendant CITY OF NEW YORK and its officers, agents, employees and servants falsely detained, falsely arrested, falsely imprisoned, falsely issued a DAT and maliciously prosecuted the plaintiff, while acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

41. That the defendant THE CITY OF NEW YORK, through its police officers, including Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe" acted intentionally, willfully, knowingly, and maliciously in bringing about the false detainment, false arrest, false imprisonment, and malicious prosecution of plaintiff.

42. That the defendant, THE CITY OF NEW YORK, was negligent in its hiring and training practices of its police officers including Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe"; in that it retained officers not fit by temperament or personality to be officers; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of defendants; in failing to instruct and train officers on the rules and regulations of designated zones and designated activity in Times Square Area; in

the malicious prosecution of plaintiff without probable cause; in detaining plaintiff without probable cause; in harassing plaintiff; in arresting plaintiff without probable cause; in imprisoning plaintiff without probable cause; in failing to have an arrest warrant; in failing to give Miranda Warnings; in following a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in taking plaintiff's freedom away; in failing to protect plaintiff; in violating plaintiff's rights under the New York State Constitution, violating plaintiff's right under the U.S. Constitution and federal statutes including 42 USC 1985, 1983 and 1981 in that plaintiff was deprived of his rights, privileges and immunities afforded under the Federal Constitution and Federal Law; defendant THE CITY OF NEW YORK and defendants Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe" were negligent in failing to use such care in the performance of their duties as a police officer as a reasonably prudent police officer would have performed under similar circumstances including but not limited to failing to use ordinary care; failing to protect; failure to guard, failure to police; failure to serve the public; failure to supervise, failure to train, failure to manage, failure to instruct; in permitting the false detention, false arrest, false imprisonment and malicious prosecution of the plaintiff; in

permitting a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in promulgating a custom, practice and policy that discriminates and targets Times Square street performers; in harassing the plaintiff; failing to train its officers; and in failing to avoid the occurrence although there was an opportunity to do so.

43. That the defendants, Police Officer Mihai Tudor, Shield#: 4250, and Police Officer Bryan Blachuciak, Shield#: 973951, and Police Officer "John Doe", failed to protect, and falsely detained and falsely arrested plaintiff without probable cause or reason, while acting as an officer, agent, employee and/or servant of the defendant THE CITY OF NEW YORK, and otherwise while acting on behalf of the defendant THE CITY OF NEW YORK.

44. That as a result of the above actions of the defendant THE CITY OF NEW YORK, including its police officers, plaintiff suffered severe mental anguish, psychological trauma, intentional infliction of emotional distress, ridicule, harassment, embarrassment, emotional distress, anxiety, depression, fear of police, loss of freedom, and loss of quality of life, exacerbation of prior mental injury; all to his damage in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of

all lower courts that would otherwise have jurisdiction, together with punitive damages and the costs and disbursements of this action.

Dated: March 22, 2024

DAVID HOROWITZ, P.C.

By: *Joanna Plonska*
Joanna Plonska
171 Madison Avenue
New York, New York 10016
(212) 684-3630

ATTORNEY'S VERIFICATION

JOANNA PLONSKA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at DAVID HOROWITZ, P.C., attorneys of record for Plaintiff(s) **JOSE ESCALONA-MARTINEZ**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because my Plaintiff(s) is/are not presently in the county wherein I maintain my offices in Richmond County.

Dated: New York, New York
March 22, 2024

Joanna Plonska
JOANNA PLONSKA

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
MIHAI TUDOR, SHIELD #: 4250, POLICE
OFFICER BRYAN BLACHUCIAK, SHIELD #:
973951, and POLICE OFFICER "JOHN DOE",**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DAVID HOROWITZ, P.C.

Attorneys for Plaintiff

171 Madison Avenue, Suite 1300

New York, New York 10016

(212) 684-3630

Pursuant to 22 NYCRR 130 1.1., the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 22, 2024

Joanna Plonska
JOANNA PLONSKA, ESQ.
